

Legislation Act, 2024

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An Act Made to Provide for Legislation

Preamble: Whereas it is desirable to make legal provisions relating to maintaining transparency in legislation drafting, enhancing public participation, ensuring stakeholder participation, making quality legislation drafting, determining the limits of delegated legislation, and systematizing the publication and records of legislation,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Legislation Act, 2081".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Order" means an order issued by the Government of Nepal or a body exercising the power conferred by an Act, and the term also denotes an executive order issued by the Government of Nepal.

(b) "Ministry of Law" means the Ministry of Law, Justice and Parliamentary Affairs of the Government of Nepal.

(c) "Procedure" means a procedure made by exercising the power conferred by an Act.

(d) "Formation Order" means an order issued by the Government of Nepal exercising the power conferred by Section 3 of the Development Committee Act, 2013.

(e) "Body" means a constitutional body, a body under the Government of Nepal or an organized institution.

(f) "Rules" means rules made by exercising the power conferred by an Act.

(g) "Directive" means a directive made by exercising the power conferred by an Act.

(h) "Delegated Legislation" means Rules, Orders, Formation Orders, Regulations, Directives, Procedures or Standards, and the term also denotes norms and guidance made by exercising the power conferred by an Act.

(i) "Standard" means a standard made for measuring or systematizing the quality or level of any subject as specified under an Act.

(j) "National Archives" means the National Archives as per Section 3 of the Archives Preservation Act, 2046.

(k) "Legislation" means an Act made by the Federal Parliament, and the term also denotes delegated legislation.

(l) "Bill" means a draft of an Act submitted in the Federal Parliament.

(m) "Regulations" means regulations made by an organized institution by exercising the power conferred by an Act.

(n) "Committee" means the committee of the House of Representatives or the National Assembly dealing with matters relating to delegated legislation.

(o) "Organized Institution" means an organized institution in which the Government of Nepal owns or controls fifty percent or more of the shares or assets. Chapter-2

Drafting of Bill

3.

Determination of Priority: (1) Based on the Government of Nepal's policy and program, budget, periodic plan, sectoral policy, and obligations created by international treaties, the concerned Ministry shall identify Bills to be drafted and send them to the Ministry of Law, specifying the priority order of Bills, within the month of Jestha of each year. (2) Based on the details received from the concerned Ministry pursuant to sub-section (1), the Ministry of Law shall, after consultation with the concerned Ministry, determine the priority order of Bills to be submitted to the Federal Parliament and determine an annual schedule. (3) The annual schedule pursuant to sub-section (2) shall be sent by the Ministry of Law to the Federal Parliament within the end of Ashadh. (4) The draft of the Bill shall be prepared in accordance with the annual schedule pursuant to sub-section (2). (5) Notwithstanding anything contained elsewhere in this section, if a draft of a Bill needs to be prepared immediately on any matter, specifying its purpose and reason, the provision of this section shall not be deemed to prevent the drafting of the Bill. 4. Approval of Principle Required: (1) Before preparing a draft of a Bill on a matter for which no legal provision exists, or even if a legal provision exists but the Bill is to repeal such legal provision, the concerned Ministry shall prepare a concept paper for drafting the Bill, including the details as determined by the Government of Nepal. (2) The consent of the Ministry of Law must be obtained on the concept paper prepared pursuant to sub-section (1). (3) After obtaining consent from the Ministry of Law pursuant to sub-section (2), for the purpose of preparing the draft of the Bill, the concerned Ministry shall submit a proposal to the Government of Nepal for the approval of the principle. (4) After the approval of the principle is obtained from the Government of Nepal for the drafting of the Bill, the concept paper approved by the Government of Nepal shall be published on the website of the concerned Ministry. (5) Notwithstanding anything contained elsewhere in this section, approval of the principle shall not be required for the drafting of the following Bills:- (a) a financial Bill or an appropriation Bill issued annually, or a Bill ancillary thereto, (b) a Bill to amend an Act. 5.

Preliminary Drafting of Bill: (1) After the approval of the principle is obtained from the Government of Nepal pursuant to Section 4, or in matters where such approval is not required, after identifying the matters to be amended in an Act, the concerned Ministry shall prepare a preliminary draft of the Bill. (2) Notwithstanding anything contained in sub-section (1), the concerned Ministry may request the Nepal Law Commission to prepare the preliminary draft of the Bill. 6. Stakeholder Involvement Required: (1) During the process of drafting the Bill, the concerned Ministry shall involve subject matter experts and stakeholders directly affected by such Bill in the discussion and obtain their opinions and suggestions. (2) Based on the opinions and suggestions obtained pursuant to sub-section (1), after revising the draft of the Bill, the concerned Ministry

shall publish on its website, for the opinion of the general public, the draft of the Bill and the following details for a period of seven to thirty days:- (a) the reason for which the Bill had to be drafted to address a certain problem, (b) the impact of the provisions of the Bill on fundamental rights and human rights, (c) the economic and financial impact of the provisions of the Bill, (d) the assistance of the provisions of the Bill in achieving the sustainable development goals, (e) the impact of the provisions of the Bill on promoting good governance, (f) the assistance of the provisions of the Bill in climate adaptation, and (g) other necessary matters. (3) If the Nepal Law Commission has been requested to prepare the preliminary draft of the Bill pursuant to sub-section (2) of Section 5, that Commission shall complete the work pursuant to sub-sections (1) and (2), revise the draft based on the suggestions received, and send it to the concerned Ministry. 7. Discussion in Subject Committee Required: When preparing a draft of a Bill on matters of concurrent jurisdiction of the Federation and Province or the Federation, Province and Local Level pursuant to the Constitution of Nepal, the concerned Ministry shall hold discussions in the subject committee as per the Federation, Province and Local Level (Coordination and Inter-relations) Act, 2077. 8. Consultation Required: The concerned Ministry shall obtain consultation from the following Ministry or body on the following matters included in the draft of the Bill:- (a) on matters involving financial burden to the Government of Nepal, from the Ministry of Finance of the Government of Nepal, (b) on matters where the Government of Nepal is the plaintiff and files a case, from the Office of the Attorney General, and (c) on matters related to the jurisdiction of any Ministry or body, from such Ministry or body. 9.

Submission to Ministry of Law for Drafting Consent: (1) After consultation is obtained pursuant to Section 8, if the draft of the Bill needs to be revised, it shall be revised and the concerned Ministry shall send it to the Ministry of Law for drafting consent. (2) When sending the draft of the Bill to the Ministry of Law for drafting consent pursuant to sub-section (1), the following details shall also be attached:- (a) if the draft of the Bill provides for issuing delegated legislation, the draft of the delegated legislation, (b) if consultation has been obtained pursuant to Section 8, such consultation, (c) if it is an amendment Bill, a three-column statement prepared clearly stating the reason for the amendment, and (d) an explanatory note prepared clearly stating the justification and reason for each clause in the draft of the Bill. Provided that, in the case of the Finance Bill and the Appropriation Bill submitted annually by the Government of Nepal to the Federal Parliament, an explanatory note shall not be required. (3) The Ministry of Law may, as necessary, revise and draft the draft received pursuant to sub-section (1) and give drafting consent to such draft within the time limit determined by the Government of Nepal. (4) When giving drafting consent pursuant to sub-section (3), the Ministry of Law shall give it based on the priority order of Bills determined pursuant to Section 3. 10. Submission for Approval of Government of Nepal: After obtaining drafting consent from the Ministry of Law pursuant to Section 9, the concerned Ministry shall submit a proposal to the Government of Nepal seeking approval to submit the draft of the Bill, which has received drafting consent from the Ministry of Law, to the Federal Parliament. 11. Registration of Bill in Parliament: After the Government of Nepal approves the submission of the draft of the Bill to the Federal Parliament, such Bill shall be registered in the Secretariat of the Federal Parliament through the Ministry of Law, along with necessary details and documents, by the concerned Minister as per the rules of business of the respective House of the Federal Parliament. 12.

Drafting of Ordinance: (1) If an Ordinance needs to be promulgated pursuant to Article 114 of the Constitution of Nepal, the concerned Ministry shall prepare the concept paper and draft of such Ordinance and send it to the Ministry of Law for consent. (2) When the concerned Ministry submits a proposal to the Government of Nepal for promulgating an Ordinance, it shall also submit the draft of the Ordinance approved by the Ministry of Law pursuant to sub-section (1) and its concept paper. (3) After the Government of Nepal decides to recommend the draft of the Ordinance submitted pursuant to sub-section (2) to the President, the Office of

the Prime Minister and Council of Ministers shall send a certified copy of such recommended decision to the Ministry of Law. (4) After receiving the copy of the decision pursuant to sub-section (3), the Ministry of Law shall prepare the necessary copies required for promulgating the Ordinance and provide them to the Office of the Prime Minister and Council of Ministers.

Chapter-3 Drafting and Limits of Delegated Legislation

13. When Delegated Legislation Not to be Issued:

(1) Delegated legislation shall not be issued except where authority has been delegated by an Act. (2) Delegated legislation issued under an Act shall not be issued beyond the objective of such Act and the authority granted by the Act. (3) Delegated legislation shall not be issued in a manner that adversely affects the powers of the Federation, Province and Local Level as provided by the Constitution of Nepal. 14. Matters to be Considered When Issuing Delegated Legislation: When issuing delegated legislation, the following matters shall be considered:- (a) the limits of the Constitution of Nepal and the Act, (b) substantive matters of law must not be placed in delegated legislation, (c) if a time is specified in the Act, it must be issued within that time, and if no time is specified, generally within six months, and (d) established norms and good practices relating to delegated legislation must be adopted. 15.

Matters Not to be Included in Delegated Legislation: Unless otherwise provided in the relevant Act, the following matters shall not be included in delegated legislation:- (a) matters relating to the establishment and operation of a fund, (b) matters involving financial liability from the Consolidated Fund or other government funds, (c) matters relating to making any act an offence or removing an existing offence, determining punishment, or substantive matters relating thereto, (d) matters relating to levying or collecting tax, reducing, increasing, or abolishing or suspending a tax rate, (e) matters relating to constituting a judicial or quasi-judicial body and creating the jurisdiction of such body, (f) matters relating to implementing subjects mentioned in the Constitution of Nepal as being according to law, (g) matters limiting fundamental rights in any manner, (h) matters relating to regulating any subject or issuing a license or permit, except where express authority is given by the Act, (i) matters relating to appointment, retirement or determination of qualifications, (j) matters relating to issuing re-delegated legislation, (k) matters relating to regulating or controlling the daily conduct or behavior of individuals, and (l) matters contrary to the principles of natural justice. 16. Matters May be Included in Rules: Generally, authority may be delegated by a Federal Act to provide for the following matters in Rules:- (a) procedural matters necessary for the implementation of the Act, (b) matters relating to determining the format of any application, form, certificate or form, (c) matters relating to specifying standards or conditions on technical subjects, (d) matters relating to specifying fees or charges that need to be revised periodically, and (e) matters relating to designating an authority for any act. 17. Matters May be Included in Regulations: (1) When delegating authority by a Federal Act to issue both Rules and Regulations, provision may be made so that the concerned body can generally make regulations on the following matters:- (a) matters relating to employee administration and service conditions and facilities of employees, and (b) matters relating to procurement, financial procedures and financial administration. (2) Notwithstanding anything contained in sub-section (1), where authority is delegated to make only regulations, there shall be no bar to including in such regulations other procedural matters for which authority is delegated by such Act. 18.

Matters May be Included in Directives: (1) If more than one body is involved in the operation or administration of any subject, to coordinate the functions of each body, to determine standards or procedures on any technical subject, to maintain uniformity in work proceedings, or if necessary to specify detailed format, standards, norms or quality on any subject, authority may be delegated by a Federal Act to make a directive. (2) Within the limits of authority given by the Federal Act pursuant to sub-section (1), the Government of Nepal or any body may make a directive. (3) Provisions applicable to the general public, other than the body or official responsible for operating or administering that subject under the directive and its direct

stakeholders, shall not be included in the directive. 19. Matters May be Included in Procedures: (1) Authority may be delegated by a Federal Act to make a procedure on matters where provision needs to be made on any technical subject, or a detailed format or procedure is required, or to systematize internal work processes. (2) Where authority is delegated by a Federal Act to make a procedure pursuant to sub-section (1), a procedure may be made subject to the limits specified by such Act. (3) Notwithstanding anything contained in sub-section (2), matters such as specifying any fee, establishing a fund, regulating any subject, compelling or prohibiting any act not compelled or prohibited by the Act shall not be included in the procedure. (4) Provisions applicable to the general public, other than the body or official responsible for operating or administering that subject under the procedure, shall not be included in the procedure. 20. Matters May be Included in Standards: (1) If it is necessary to measure or systematize the quality or level of any subject, authority may be delegated by a Federal Act to make a standard. (2) When making a standard pursuant to sub-section (1), matters other than specifying the quality, level, quantity, weight, height or value of anything, establishing its basis, maintaining uniformity or systematizing it shall not be included in such standard. 21.

Drafting Consent Required: (1) Before approving the following delegated legislation, the Ministry of the Government of Nepal or the concerned body shall obtain drafting consent from the Ministry of Law on the draft of such delegated legislation:- (a) Rules to be made by the Government of Nepal, (b) Formation Orders, and (c) Directives or Procedures to be made by the Government of Nepal or the Council of Ministers pursuant to prevailing law. (2) Notwithstanding anything contained in sub-section (1), consent of the Ministry of Law shall not be required for delegated legislation made or approved by a constitutional body itself. (3) The draft of the delegated legislation for which drafting consent has been obtained from the Ministry of Law pursuant to sub-section (1) shall be submitted for approval pursuant to Section 22. 22. Approval of Delegated Legislation: The following delegated legislation shall be approved by the following body, level or authority:- (a) where an Act specifies that it shall be approved by a certain body, level or authority, by that same body, level or authority, and (b) in the case of other delegated legislation issued under an Act, except as provided in clause (a), by the Government of Nepal. Chapter-4 Legislation Records and Publication 23. Records of Acts and Ordinances: (1) Out of the copies of certified Acts, one copy shall be kept in the Office of the President, two copies shall be sent to the Ministry of Law, and one copy each shall be sent to the Office of the Prime Minister and Council of Ministers and the Secretariat of the Federal Parliament. (2) Each body receiving certified copies of Acts and Ordinances shall maintain and safely keep records with registration numbers and page numbers. (3) The Ministry of Law shall, within the end of Baishakh of each year, send one copy each of every Act and Ordinance certified in the preceding year to the National Archives. (4) The National Archives shall maintain records with registration numbers and page numbers of the certified copies of Acts and Ordinances received pursuant to sub-section (3), and prepare and keep their electronic copies as necessary. 24. Registration of Delegated Legislation: (1) After delegated legislation is approved pursuant to Section 22, within seven days from the date it is received, certified by the approving body, the concerned Ministry or body shall send it to the Ministry of Law for registration.

The Ministry of Law shall register such received delegated legislation and provide a registration number. (2) Notwithstanding anything contained in sub-section (1), in the case of delegated legislation published in the Nepal Gazette, when the Ministry of Law edits and sends the notice for publication in the Nepal Gazette, it shall maintain a separate registration number for such delegated legislation and mention such registration number in the edited notice. When publishing the notice in the Nepal Gazette, it shall be published with such registration number. (3) When sending delegated legislation to the Ministry of Law for registration or editing of notice for publication in the Nepal Gazette, a photostat copy of the decision approving such delegated

legislation, a certified copy of the approved delegated legislation, and an electronic copy shall also be attached. (4) When registering delegated legislation pursuant to sub-section (3), the Ministry of Law shall specify the registration number, date of registration, the Federal Act delegating authority to issue such legislation and its relevant section, and the authority or body approving the delegated legislation. (5) On the top of the first page of the delegated legislation registered pursuant to sub-section (1), a stamp showing the nature of legislation, registration number and date of registration shall be affixed, signed by the concerned officer of the Ministry of Law, and one copy shall be kept in the Ministry of Law and one copy shall be returned to the concerned body bringing the delegated legislation for registration. (6) The Ministry of Law may arrange for the registration of delegated legislation pursuant to this section through electronic means as well. 25.

Publication of Legislation: (1) After an Act or Ordinance is certified, it shall be published in the Nepal Gazette on the date of certification. (2) An Act or Ordinance sent for publication in the Nepal Gazette pursuant to sub-section (1) shall be posted on the website of the Ministry of Law within two days of being sent for such publication. (3) Rules or Formation Orders issued by the Government of Nepal or a constitutional body shall be published in the Nepal Gazette. (4) Other than Rules or Formation Orders pursuant to sub-section (3), if other delegated legislation is required to be published in the Nepal Gazette pursuant to prevailing law, or if the Government of Nepal decides to publish it in the Nepal Gazette, such delegated legislation shall be published in the Nepal Gazette after it is approved by the Government of Nepal. (5) Based on the notice published in the Nepal Gazette, the body designated by the Ministry of Law shall arrange to publish the Constitution of Nepal, Acts, Rules and other delegated legislation in an integrated form or as thematic collections or as separate books, and arrange for their sale and distribution. (6) Based on the notice published in the Nepal Gazette, the concerned Ministry or body may post Acts, Rules and other delegated legislation related to it on its website. (7) When publishing legislation pursuant to this section, there shall be no bar to publishing it on paper, in a font, or size different from the paper, font or size used when such legislation was certified or approved. (8) When publishing legislation pursuant to sub-section (5) or (7), if publishing in book form, the following details shall be specified as follows:- (a) on the first inner page after the cover page of the book, a statement indicating up to what date amendments have been incorporated and updated, (b) when publishing an Act, before the long title of each Act, the date of certification and publication in the Nepal Gazette of such Act, and the name of the Act amending such Act, its date of certification and publication in the Nepal Gazette, (c) if any Act or delegated legislation provides for specifying or issuing a notice for commencement, the date specified by such notice or the date of publication of the notice shall be indicated in a footnote, (d) if authority is delegated to alter or amend schedules or any other similar provisions by publishing a notice in the Nepal Gazette, updated details of alterations or amendments made pursuant to such authority, and (e) if any provision of law has been invalidated or voided by the Supreme Court, the name of the case invalidating or voiding such provision, date of order, names of parties, if published in the Nepal Law Journal, its year and issue number and decision number. (9) When publishing any legislation on a website, on the first page of each legislation, a statement indicating up to what date amendments have been updated and the name of the publishing Ministry or body shall be mentioned.

26. Publication on Website Required: (1) The following delegated legislation shall be published as follows:-

(a) Regulations, Orders, Directives, Procedures or Standards issued by the Government of Nepal or any body shall be published on the website of the concerned Ministry or body within seven days from the date of obtaining the registration number pursuant to this Act,

Provided that if the delegated legislation pursuant to this clause is also to be published in the Nepal Gazette,

the concerned Ministry or body shall publish such delegated legislation on its website only after it is published in the Nepal Gazette.

(b) Delegated legislation issued by an organized institution shall be published on the website of such institution within three days from the date of obtaining the registration number pursuant to this Act.

(2) When publishing delegated legislation pursuant to clause (b) of sub-section (1), the Government of Nepal or the Ministry or body issuing the delegated legislation shall also mention the authority deciding to issue such delegated legislation, the date of decision, and the registration number and date pursuant to Section 24. 27. No Legal Validity: Delegated legislation not published pursuant to this Act shall not have legal validity until published, and such legislation shall not be applicable to the general public until published. 28.

Maintaining and Safely Keeping a Copy of Certified Copy: (1) One certified copy of delegated legislation approved or issued by the Government of Nepal shall be kept in the Office of the Prime Minister and Council of Ministers, and one copy each shall be safely kept in the concerned Ministry and the Ministry of Law. (2) For the purpose of sub-section (1), after delegated legislation is approved by the Government of Nepal, the Office of the Prime Minister and Council of Ministers shall send the decision and certified copy of the delegated legislation to the respective bodies. (3) One certified copy of delegated legislation issued by bodies other than those approved or issued by the Government of Nepal shall be kept by the concerned body, and one copy shall be safely kept in the Ministry of Law. (4) For the purpose of sub-section (3), after the delegated legislation is approved and obtains a registration number pursuant to Section 24, the concerned body shall send one authentic copy of such delegated legislation, its electronic copy, and a copy of the decision relating thereto to the concerned Ministry. (5) The concerned Ministry shall prepare and safely keep records of the authentic copies received pursuant to sub-section (2) or (4) in the format determined by the Ministry of Law. (6) For the purpose of managing records pursuant to this section, the Secretary of the concerned Ministry or the head of the concerned body shall designate any division or section of such Ministry or body as the record-keeping section. 29. Details to be Sent to Ministry of Law: The concerned Ministry shall send updated details of the records prepared pursuant to Section 28 to the Ministry of Law every four months. 30. Preparation of Integrated Details: (1) Based on the details received pursuant to Section 29, the Ministry of Law shall prepare an integrated and updated detail of delegated legislation issued under Federal Acts. (2) The Ministry of Law shall publish the details pursuant to sub-section (1) on its website within the end of Ashadh. Chapter-5 Miscellaneous 31. To be Provided to Committee: (1) Within thirty days of the issuance of delegated legislation pursuant to a Federal Act, the concerned Minister shall provide such legislation to the Committee for the information of the Committee. (2) In the case of delegated legislation published in the Nepal Gazette, only the name of such delegated legislation and the date of publication in the Gazette need to be provided to the Committee. 32.

Parliamentary Scrutiny of Delegated Legislation: (1) The Committee may conduct or cause to conduct regular scrutiny of delegated legislation. (2) The procedure for scrutiny pursuant to sub-section (1) shall be determined by the Committee itself. (3) Pursuant to the procedure under sub-section (2), the Committee may, as necessary, give necessary directions to stakeholders or draw their attention. (4) If, through scrutiny under this section, any defect or need for improvement is found in the delegated legislation, the Committee may direct the concerned Ministry or body to correct or amend it. 33. Information to Ministry of Law: (1) If any matter needing improvement or any defect is found in any Act or delegated legislation issued by the Government of Nepal, any person may inform the Ministry of Law, mentioning the matter needing improvement or the defect found. (2) After receiving information pursuant to sub-section (1), if the matter is related to the Ministry of Law, it shall itself take action, and if related to another Ministry, it shall be sent to the

concerned Ministry for improvement. 34. Duty of Body Issuing Delegated Legislation: It shall be the duty of the body issuing delegated legislation to comply with directions given by the Houses or Committees of the Federal Parliament in relation to delegated legislation. 35. Registration and Publication Required: (1) Notwithstanding anything contained in prevailing law, delegated legislation issued under prevailing law prior to the commencement of this Act but not published in the Nepal Gazette shall be registered in the Ministry of Law pursuant to this Act within one year from the date of commencement of this Act and published mentioning the registration number. (2) Delegated legislation not registered in the Ministry of Law within the period under sub-section (1) shall automatically become invalid after the expiry of such period. 36. Measurement of Act Implementation: Within one year of the completion of five years from the commencement of each Act, and thereafter within one year after every five years, the concerned Ministry shall evaluate the implementation status of the Act and submit a report thereof to the Federal Parliament. 37.

Amendment to the Certain Public Documents Authentication (Procedure) Act, 2063: In the Certain Public Documents Authentication (Procedure) Act, 2063,- (1) In Section 3,- (a) in sub-section (1), the words "four copies" shall be replaced by the words "five copies". (b) in sub-section (4), the words "one copy each shall be sent to the Office of the Prime Minister and Council of Ministers, the Ministry of Law, Justice and Parliamentary Affairs and the Secretariat of the Federal Parliament" shall be replaced by the words "one copy each shall be sent to the Office of the Prime Minister and Council of Ministers and the Secretariat of the Federal Parliament, and two copies shall be sent to the Ministry of Law, Justice and Parliamentary Affairs". (2) In Section 5,- (a) in sub-section (1), the words "three copies" shall be replaced by the words "four copies". (b) in sub-section (6), the words "one copy each shall be sent to the Office of the Prime Minister and Council of Ministers and the Ministry of Law, Justice and Parliamentary Affairs" shall be replaced by the words "one copy shall be sent to the Office of the Prime Minister and Council of Ministers and two copies shall be sent to the Ministry of Law, Justice and Parliamentary Affairs".